

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Team # 3	CCRB Case #: 201309427	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/02/2013 4:02 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/2/2015	Precinct: 63		
Date/Time CV Reported Wed, 10/02/2013 5:37 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/08/2013 4:00 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Christophe Burton	16667	944399	063 PCT		
2. POM Michael Mitchell	12463	935328	063 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Christophe Burton	Abuse: PO Christopher Burton stopped § 87(2)(b)	A . Substantiated			
B . POM Michael Mitchell	Abuse: PO Michael Mitchell stopped § 87(2)(b)	B . Substantiated			
C . POM Michael Mitchell	Abuse: PO Michael Mitchell frisked § 87(2)(b)	C . Substantiated			

Case Summary

On October 2, 2013, § 87(2)(b) filed this complaint with the Internal Affairs Bureau by telephone, generating IAB log 13-42307, which was received by the Civilian Complaint Review Board on October 8, 2013 (encl. 4A-D). On October 2, 2013, at approximately 4:02 p.m., PO Christopher Burton and PO Michael Mitchell of the 63rd Precinct stopped § 87(2)(b) inside § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A—Abuse of Authority: PO Christopher Burton stopped § 87(2)(b)

Allegation B—Abuse of Authority: PO Michael Mitchell stopped § 87(2)(b)

Allegation C—Abuse of Authority: PO Michael Mitchell frisked § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B and C** be closed as **substantiated**.

On December 4, 2013, during his CCRB interview, § 87(2)(b) was presented with his options of investigation and mediation, and opted for an investigation to resolve his complaint. § 87(2)(b)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) old on the incident date, § 87(2)(b) is a black male, § 87(2)(b) with black hair and brown eyes.

CCRB Testimony

On October 2, 2013, § 87(2)(b) was interviewed at his home at § 87(2)(b) by Sgt. Vincent Deynes of IAB, Group 34 (encl. 8M), and on December 4, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 4E-J). § 87(2)(g)

On October 2, 2013, at approximately 4:02 p.m., § 87(2)(b) parked his car near § 87(2)(b) in Brooklyn.

§ 87(2)(b) wore dark blue work pants. He had a peach-colored washcloth in his back left pocket. In the same pocket, he had a fifty dollar bill. His wallet was in his right back pocket. His car keys were in one of his front pockets; he believed it was his right pocket. He wore a short sleeved shirt.

When shown a Google Maps street view photograph of the § 87(2)(b) located at § 87(2)(b) (encl. 4G), § 87(2)(b) confirmed that it was the incident location. § 87(2)(b) parked his car and walked toward the deli when he encountered a man from the neighborhood, M1, whose name he did not know, although he recognized him. M1 said something along the lines of, “Put that rag in your pocket!” or “What you doing with that rag in your pocket?” § 87(2)(b) believed that M1 was making a suggestion regarding a gang affiliation. He laughed and told M1, “You’re crazy,” and pushed the washcloth farther in his

pocket. M1 continued walking on Flatlands Avenue. He and M1 did not make any physical contact.

§ 87(2)(b) entered the deli, approached the counter and ordered an orange juice with an egg in it. There were a couple of other people in the store. After about three to four minutes, as § 87(2)(b) stood at the counter near the lotto machine, two officers, identified by the investigation to be PO Michael Mitchell and PO Christopher Burton, entered the deli from the east side, and came straight to § 87(2)(b). The officers had been in a black unmarked sedan. They wore plainclothes, and their shields hung around their necks. When they came in, the officer identified via investigation as PO Burton, who § 87(2)(b) described as a black male, thirty-five to forty-five years old, of shorter stature with a medium build and glasses, stood behind § 87(2)(b).

The officer identified as PO Mitchell, who § 87(2)(b) described as a black male or Hispanic male with a darker complexion, thirty-five to forty-five years old, 5'10" with a medium build and low haircut asked § 87(2)(b) what was in his pocket. § 87(2)(b) told PO Mitchell that he had no guns or drugs. PO Mitchell asked § 87(2)(b) what was in his pocket three to five times. § 87(2)(b) did not answer, but told PO Mitchell that he was not afraid of him. PO Mitchell then repeated his question, so § 87(2)(b) answered that his wallet was in his pocket. PO Mitchell then requested § 87(2)(b)'s identification. § 87(2)(b) reached into his back right pocket to retrieve his wallet, but before he removed it, PO Mitchell grabbed, twisted and pulled back his left forearm. § 87(2)(b) was not sure whether PO Mitchell used one or two hands to grab his arm. PO Mitchell told § 87(2)(b) that he had lied to them. § 87(2)(b) asked what was going on, and PO Mitchell replied, "Don't you try that with us." § 87(2)(b) did not recall precisely when, but he removed his identification from his wallet at some point. PO Mitchell released § 87(2)(b)'s arm, and touched § 87(2)(b)'s right back pocket. § 87(2)(b) did not know whether PO Mitchell reached into his pocket, but knew that he touched the back right pocket because he saw and felt it. § 87(2)(b) denied that PO Mitchell frisked him anywhere else or touched any of his other pockets. He did not feel PO Mitchell remove anything from his pocket. After frisking § 87(2)(b)'s back right pocket, PO Mitchell remarked that § 87(2)(b) did not have anything on him. At that point, § 87(2)(b) handed his identification to PO Mitchell.

PO Mitchell noted § 87(2)(b)'s information, but § 87(2)(b) was not sure where he noted it. He did not ask § 87(2)(b) for any additional information. § 87(2)(b) asked PO Mitchell for his shield number, and he told it to § 87(2)(b) three or four times until he heard it correctly. § 87(2)(b) noted PO Mitchell's shield number. § 87(2)(b) was not sure whether he asked PO Burton for his shield number. PO Mitchell returned § 87(2)(b)'s identification, and the officers left without issuing § 87(2)(b) any summons or arresting him. § 87(2)(b) then paid for his juice, and left. § 87(2)(b) said that the man who worked at the deli, determined by the investigation to be § 87(2)(b) did not witness the incident because he was making the juice. § 87(2)(b) estimated that the incident lasted about ten minutes. § 87(2)(b) did not see the officers return to their vehicle.

When § 87(2)(b) was interviewed by IAB, he positively identified PO Mitchell and PO Burton in photo arrays.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b).

Telephone Statement

On October 2, 2013, § 87(2)(b) was interviewed by Sgt. Deynes of IAB, Group 34, and on February 7, 2014, (encl. 8K), the investigator contacted § 87(2)(b) by phone, and spoke to § 87(2)(b) § 87(2)(g).

§ 87(2)(b) confirmed that he was present for the incident, but was dealing with customers during the incident, so could not describe what happened in much detail. He believed that there were two officers, and that they approached § 87(2)(b) and "wanted to search him." § 87(2)(b) also said that "they were asking him, and he was talking back." § 87(2)(b) heard the officers arguing with § 87(2)(b) but did not know what they were saying. He denied seeing the officers frisk or search § 87(2)(b). § 87(2)(b) said that IAB came after the incident and took a copy of the video footage. He explained that the video footage was no longer available at § 87(2)(b) and he could only review footage from the past month.

NYPD Statements:

Subject Officer: PO MICHAEL MITCHELL

- § 87(2)(b) *old on the incident date, PO Mitchell is a black male, § 87(2)(b) black hair and brown eyes.*
- *On October 2, 2013, PO Mitchell worked from 9:30 a.m. to 6:05 p.m. His assignment was Anti-Crime. He wore plainclothes. He worked with PO Christopher Burton in an unmarked blue Chevy Impala.*

Memo Book

PO Mitchell noted in his memo book that at 4:02 p.m., a male was stopped at § 87(2)(b) § 87(2)(b) for robbery and criminal possession of a weapon. The subject was observed near the northeast corner of § 87(2)(b) with a heavy bulge in his rear pocket (encl.5A-B)

CCRB Testimony

On February 11, 2014, PO Mitchell was interviewed at the CCRB (encl. 5C-E).

PO Mitchell and PO Burton were in their vehicle, parked on the corner of § 87(2)(b) § 87(2)(b) when they observed § 87(2)(b). PO Mitchell observed that the rear pocket of § 87(2)(b)'s pants was "heavy." PO Mitchell did not recall what kind of pants § 87(2)(b) wore. PO Mitchell explained that there seemed to be some weight to the pocket, weighing the pants down. He believed that there was an object in § 87(2)(b)'s pocket, but he did not know what it was. When asked what the shape of the object was, PO Mitchell said he did not remember the shape, but that the object was "large." When asked how big the object was, he said that it took up most of the back pocket. PO Mitchell said that the object was "big enough." His legal counsel then asked whether he meant that the object was big enough to be a weapon, and PO Mitchell confirmed such. When asked what kind of weapon PO Mitchell believed the object was, he said "it could have been a gun, a knife, something heavy." PO Mitchell denied that the object stuck out of § 87(2)(b)'s pocket at all; it was concealed completely by the pocket. When asked why he believed it was a gun, and PO Mitchell said he did not know exactly what it was. When asked why he believed it was a knife, he said because it was heavy and he did not know exactly what it was. His legal counsel suggested that his suspicions were based on his experience, and he confirmed such. PO Mitchell explained that he had seen weapons carried "like that," and noted that § 87(2)(b) appeared to be adjusting "it" and "wanted to make sure it was there," and "felt the weight of it" to do so. When asked to specify how § 87(2)(b) adjusted the object, PO Mitchell explained that § 87(2)(b) picked up the object with his hand, from the outside of his pocket, and lifted it. PO Mitchell confirmed that § 87(2)(b) grabbed the object with his whole

hand rather than poking it with his fingers. PO Mitchell saw § 87(2)(b) lift up the object one time. He denied making any additional observations of § 87(2)(b). PO Mitchell was about five to ten feet away from § 87(2)(b) upon observing him adjust the object.

PO Mitchell and PO Burton discussed their decision to approach § 87(2)(b) and ask him what he had in his pocket. They then exited their vehicle, and followed him into the store. PO Mitchell asked § 87(2)(b) what he had in his rear left pocket. PO Mitchell confirmed that he specified the pocket in question to § 87(2)(b). § 87(2)(b) replied that it was his wallet. PO Mitchell told him that they needed his identification, and § 87(2)(b) reached into his front right pocket, pulled out a wallet and provided his identification. During his CCRB interview, PO Mitchell explained that when § 87(2)(b) retrieved a wallet from his front right pocket, the officers knew that he did not have his wallet in his back pocket. PO Mitchell told § 87(2)(b) that it was obviously not his wallet causing all the weight in his rear left pocket. § 87(2)(b) responded to this remark, but PO Mitchell could not remember what he said. PO Mitchell told § 87(2)(b) that he was going to check his pocket. PO Mitchell remembered that § 87(2)(b) was verbally combative, but not physically. PO Mitchell told § 87(2)(b) that he had not told the truth about what was in his pocket, so he was going to have to check it. He then frisked that pocket to make sure that it was not a weapon. He squeezed the object to make sure it was not anything heavy or metallic. When he squeezed the object, it felt “leafy.” He then said that it felt “leafy and heavy and plant-like.” His legal counsel suggested “squishy,” and PO Mitchell confirmed such, and added, “branchy.” He later added that the object felt weighted, but squishy. He confirmed that he felt the object from the outside of § 87(2)(b)’s pocket. PO Mitchell denied that he frisked any other pocket or removed the object from the pocket that he frisked. PO Mitchell believed that the object was marijuana wrapped in a banana leaf. PO Mitchell explained that, pursuant to his Anti-Crime assignment, he would not be arresting § 87(2)(b) for marijuana in his pocket. He confirmed that after he frisked the object, he no longer suspected it of being a weapon.

The officers obtained § 87(2)(b)’s information and completed the UF250 report. When asked if there was any other reason why he suspected § 87(2)(b) of having a weapon, PO Mitchell cited the past commercial robberies, the weight of the object in the pocket, and that § 87(2)(b) had lied about what was in the pocket. PO Mitchell explained that in his experience, he had responded to calls involving armed robberies at the specific location of this incident.

It was noted that PO Mitchell had indicated in his memo book that he suspected § 87(2)(b) of casing the location for robbery. PO Mitchell cited “the weapon” as the reason for said suspicion, and repeated that he had received calls regarding armed robberies from the specific store involved in this incident, and other locations in its immediate vicinity.

Subject Officer: PO CHRISTOPHER BURTON

- § 87(2)(b) old on the incident date, PO Burton is a black male, § 87(2)(b), black hair and brown eyes.
- On October 2, 2013, PO Burton worked from 9:30 a.m. until 6:05 p.m. His assignment was anti-crime. He wore plainclothes, and worked with PO Michael Mitchell in an unmarked dark blue Chevy Impala.

Memo Book

PO Burton noted in his memo book that at 4:02 p.m., he stopped a male on the east corner of § 87(2)(b). The male was observed reaching into left pants pocket to ensure that item was still in pocket while RMP passed by. He noted § 87(2)(b)’s name, address and pedigree. At 4:04 p.m., he noted that a report was prepared for suspicion of criminal possession of a weapon and robbery (encl. 6A-B).

UF250

PO Burton prepared a Stop, Question and Frisk report regarding the stop of § 87(2)(b) (encl. 6D-E). He specified that he suspected § 87(2)(b) of “robbery,” after observing actions indicative of engaging in violent crimes during an observation period lasting approximately one minute. The stop lasted two minutes. Since PO Burton was in plainclothes, he identified himself both verbally and with his shield. PO Burton indicated that § 87(2)(b) was frisked due to inappropriate attire—possibly concealing a weapon, and furtive movements. Additional factors listed: area has high incidence of reported offense, proximity to scene of suspected offense, and evasive, false or inconsistent responses to officers’ questions.

CCRB Testimony

On May 14, 2014, PO Burton was interviewed at the CCRB (encl. 6F-H).

PO Mitchell drove northbound on § 87(2)(b), and PO Burton sat in the passenger’s seat. At the corner of § 87(2)(b), PO Burton observed § 87(2)(b) and made eye contact with him. He estimated that this eye contact lasted no more than five seconds. § 87(2)(b) was walking at a regular speed, which PO Burton estimated to be no more than ten miles per hour. § 87(2)(b) used his left hand to reach into his rear left pocket, and seemed to make sure an item was still in that pocket. § 87(2)(b) continued to make eye contact with PO Burton as he adjusted this object. The lighting conditions were good, allowing PO Burton to see § 87(2)(b) clearly. PO Burton believed that § 87(2)(b) wore dark clothing.

PO Burton explained that he has been an officer for many years, and he knew when someone was trying to make sure “something is not being shown.” When asked how he knew that § 87(2)(b) did not want something to be shown, PO Burton said because § 87(2)(b) was looking at the officers, and “stuffing it down.” PO Burton explained that § 87(2)(b)’s left rear pocket was on the side farther from the officers. PO Burton’s legal counsel suggested that § 87(2)(b) used a “tucking motion” to push the object in his pocket, and PO Burton confirmed that description. PO Burton denied that it seemed like § 87(2)(b) was grabbing something. § 87(2)(b) did not have anything in his hand before putting it in his pocket. PO Burton estimated that the officers were ten to fifteen feet away from § 87(2)(b).

When asked how big the bulge was, PO Burton said that it was “significant” enough to show him that it was “not a natural bulge.” PO Burton said that the bulge did not take up the whole pocket, and reiterated that it was not “natural.” He explained that by not “natural,” he meant that it would not be a wallet. PO Burton then explained that during his experience, he had made many weapon arrests. When asked whether he meant that he had made observations such as those he made of § 87(2)(b) in the past, and then determined that the individual in question had a weapon, he responded, “and acted indicative of having a weapon.” PO Burton denied that § 87(2)(b)’s pants sagged due to the bulge. When asked why he believed that the bulge was heavy, he said the size of the bulge, and “actions indicative of him trying to conceal whatever was in that pocket.” PO Burton denied that any part of the object stuck out of the pocket. He denied that the bulge had a particular shape. He could not recall the bulge having any hard edges or protrusions. PO Burton believed that § 87(2)(b) had a weapon in his pocket, but he was not sure what type of weapon. PO Burton explained that § 87(2)(b)’s actions led him to believe that he had a weapon in his possession. PO Burton said that § 87(2)(b)’s actions indicated “concealment.”

After observing § 87(2)(b) PO Burton asked PO Mitchell to make a U-turn, and he did. PO Burton said that PO Mitchell did not make the same observations of § 87(2)(b) that he had, but he informed PO Mitchell that § 87(2)(b) might have a weapon. The officers did not

discuss any further course of action. They exited their vehicle and entered the store. PO Burton believed that § 87(2)(b) faced the counter inside the store when the officers entered. PO Burton denied making any additional observations of § 87(2)(b) upon entering the store. PO Burton confirmed that the bulge he had previously observed was still present, but he made no further observations of it, including any regarding its shape or size.

PO Burton pointed at § 87(2)(b)'s left rear pocket, and asked what was in it. PO Burton also verbally specified the pocket to which he referred. § 87(2)(b) replied that his wallet was in it. PO Mitchell asked to see § 87(2)(b)'s identification. § 87(2)(b) then reached into his front right pocket and retrieved a wallet, from which he removed his identification. PO Burton later said that he was not sure whether the pocket from which § 87(2)(b) retrieved his wallet was in the front or back of his pants, but he knew that it was on the right side. § 87(2)(b) then handed the identification to PO Mitchell. PO Mitchell told § 87(2)(b) that he had lied to the officers because he had said that his wallet was in his left pocket. PO Burton confirmed that § 87(2)(b) responded to PO Mitchell's statement that he had lied, but PO Burton did not recall what said response was. PO Burton did not remember whether § 87(2)(b) disputed PO Mitchell's assertion that he had lied, or merely commented on it. PO Mitchell informed § 87(2)(b) that he was going to frisk him because he did not have a wallet in his rear left pocket as he had said. PO Mitchell then frisked § 87(2)(b)'s left rear pocket by grabbing whatever was in the pocket and squeezing it once. PO Mitchell did not reach into this pocket, or frisk anywhere else on § 87(2)(b)'s body. PO Mitchell told PO Burton that there might have been some contraband in the pocket, but the officers did not search for drugs. § 87(2)(b) was informed that the officers were going to take down his information to record that he had been stopped.

PO Burton explained that when PO Mitchell felt § 87(2)(b)'s pocket, he thought that § 87(2)(b) had soft leaves in which marijuana could be wrapped. PO Mitchell did not provide any further description of what he felt after the incident. PO Burton explained that the stop did not have to do with drugs, and he and PO Mitchell were not there to make drug arrests. PO Burton denied that he or PO Mitchell said anything about the possibility of § 87(2)(b) having drugs in front of § 87(2)(b). PO Burton said that § 87(2)(b) was asked for his identification as a simple request for information.

§ 87(2)(b) seemed upset, so PO Burton asked him what was wrong, and whether he had disrespected him in any way. § 87(2)(b) said no, but he did not like the fact that the officers had stopped him. PO Burton told § 87(2)(b) that he could take down his and PO Mitchell's names and shield numbers. The incident concluded when the officers left the store, and § 87(2)(b) remained.

PO Burton reviewed the UF250 he completed regarding the stop and frisk of § 87(2)(b). When asked whether he suspected § 87(2)(b) of robbery, PO Burton explained that if someone enters a store possibly with a weapon, they could rob that store. He reiterated that commercial robberies are a problem within his precinct, particularly within Sector G, wherein this incident occurred. He confirmed that he had made arrests for commercial robberies within Sector G. PO Burton also said that he believed that robberies had occurred specifically within the store in which the incident took place. PO Burton indicated furtive movements as reasons for the frisk due to § 87(2)(b)'s reaching into his pocket, possibly for a weapon, and inappropriate attire due to the possible concealment of said weapon.

NYPD Documents

IAB Group 34 Investigative Worksheet

On October 2, 2013, at 7:35 p.m., Sgt. Deynes and Sgt. John Sciascia of IAB, Group 34, visited § 87(2)(b) in Brooklyn, where § 87(2)(b) showed them the video footage of the incident taken by § 87(2)(b) camera (encl. 8L). Sgt. Sciascia's reported interpretation of the footage is summarized below.

When 3:42 p.m. is displayed on the video timestamp, which Sgt. Sciascia noted was approximately 15 minutes slow, § 87(2)(b) is visible at the store's counter when PO Mitchell and PO Burton enter and engage him in conversation. PO Burton is seen grabbing § 87(2)(b)'s left [arm]. PO Mitchell is seen frisking § 87(2)(b)'s left pocket, and when he pulls his hands away afterward, it is clear that they are open without anything in them. The video then showed § 87(2)(b) handing PO Mitchell what appears to be his identification, then PO Mitchell leaning over the counter, writing on a brown paper. § 87(2)(b) was also seen writing something on the counter as well. When PO Mitchell finished writing, he returned § 87(2)(b)'s identification and the officers left the store without further incident.

Other Evidence

Attempts to Obtain Video Footage

During their aforementioned visit to § 87(2)(b) on October 2, 2013, Sgt. Deynes and Sgt. Sciascia were unable to obtain a copy of the video footage because § 87(2)(b) did not know how to download such. § 87(2)(b) told them that the footage should be archived for at least a week, and he would be available to download it the following day.

On October 3, 2013, at 6:20 p.m., Sgt. Victor Crespo and Sgt. Michael Fealy of IAB Group 34 met with Det. Karl of IAB TARU at the New Way Gourmet Deli to attempt to download the video footage of the incident. Det. Karl informed Sgt. Crespo and Sgt. Fealy that after several attempts, he was not able to open the video on his laptop because he did not have the appropriate player. He told the investigating officers that he would download the video onto a disc at his office, and notify them when it was available for pick up. At 8:30 p.m. the same day, Det. Karl informed Sgt. Crespo that the disc would be available for pick up on October 4, 2013 after 7:00 a.m., but requested that the investigating officer call him prior to coming to pick up the video to ensure that he was there.

On October 4, 2013, at 9:00 a.m., Sgt. Euborne Springer of IAB Group 34 called Det. Karl and left a voice message requesting that he contact Sgt. Springer so that he could retrieve the video footage of the incident. There were no further documented investigative actions taken by IAB Group 34 regarding this case.

On September 11, 2014, the investigator spoke to investigators at Group 34, who confirmed that they had a copy of the pertinent video footage. The investigator was further instructed to request the video footage through a Reznick letter, which was faxed to the IAB/CCRB liaison on September 16, 2014 (encl. 11H-J). On November 12, 2014, the investigator received the requested video footage. Upon review, the footage obtained did not cover the incident time. Also on November 12, 2014, the investigator spoke to Sgt. Sciascia, who confirmed that the video footage sent to the CCRB was the only footage that they had on record regarding this incident. As such, the pertinent video footage could not be obtained.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 26, 2014, with regard to the incident (encl. 11G).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 3C).

Subject Officers CCRB History

- PO Mitchell has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. 3A).
- PO Burton has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 3B).

Conclusion

Identification of Subject Officers

PO Mitchell and PO Burton acknowledged their roles in this incident.

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: PO Christopher Burton stopped [§ 87(2)(b)]

Allegation B—Abuse of Authority: PO Michael Mitchell stopped [§ 87(2)(b)]

Allegation C—Abuse of Authority: PO Michael Mitchell frisked [§ 87(2)(b)]

PO Burton and PO Mitchell both testified that they observed a bulge in [§ 87(2)(b)]'s rear left pocket when he was outside of the deli at [§ 87(2)(b)]. [§ 87(2)(b)] testified that he had a washcloth in his rear left pocket, and his wallet in his rear right pocket. PO Burton and PO Mitchell observed that the bulge was heavy, but could not describe its shape. Both PO Mitchell and PO Burton said that the object was completely concealed in [§ 87(2)(b)]'s pocket, thus could not account for color or other materialistic characteristics upon sight, or articulate its size beyond “big enough,” and “significant,” respectively. The officers enumerated their suspicion upon observing the bulge that it indicated the presence of a weapon, although neither, based on their observations, could specify a particular weapon that the bulge seemed to represent. PO Mitchell suggested that the heaviness of the bulge indicated that it could be a weapon, positing a gun or knife as examples. PO Burton said that it was “not a natural bulge,” and clarified only so far as to say that it did not appear to be created by a wallet.

[§ 87(2)(b)] testified that when he was outside of the deli, an individual that he knew from the neighborhood made a remark regarding “the rag” in [§ 87(2)(b)]'s pocket. [§ 87(2)(b)] subsequently pushed the washcloth further into his pocket. Both officers supported their suspicion of [§ 87(2)(b)]'s possessing a weapon, consistent with the UF250 report completed in regards, with their observation of his adjusting the object in his pocket. They indicated that [§ 87(2)(b)] moved the object to make sure it was there and concealed. PO Mitchell and PO Burton cited their experience to back up their assertion that individuals concealing weapons in their

possession would adjust said weapons. § 87(2)(g)

Inside the deli, the officers questioned § 87(2)(b) with respect to the content of his pocket. § 87(2)(b) acknowledged his initial unwillingness to directly answer the question, instead telling PO Mitchell that he did not have any guns or drugs on him, and that he was not afraid of PO Mitchell, prompting PO Mitchell to ask him the same question three to five times. § 87(2)(b) finally responded that he had his wallet in his pocket. PO Mitchell then requested § 87(2)(b)'s identification. § 87(2)(b) testified that as he reached to retrieve his wallet from his back right pocket, PO Mitchell grabbed § 87(2)(b)'s left arm and told him that he had lied to the officers. PO Mitchell and PO Burton testified that they specifically asked § 87(2)(b) what was in his left rear pocket. After § 87(2)(b) replied that it was his wallet, he reached into one of his front pockets—PO Mitchell specified that it was his right front pocket, but PO Burton could not specify—and retrieved a wallet. § 87(2)(g)

PO Mitchell testified that when he frisked the pocket and squeezed the object therein, it felt “leafy and heavy and plant-like.” Although after feeling the pocket’s contents, PO Mitchell believed that § 87(2)(b) had marijuana in his pocket, the officers’ Anti-Crime assignment discouraged them from investigating further or initiating a drug arrest.

PO Burton completed a Stop, Question and Frisk report regarding the stop of § 87(2)(b) wherein he specified that he suspected § 87(2)(b) of robbery. Both officers provided general information regarding the past occurrence of commercial robberies in that vicinity, including robberies involving weapons or firearms, and both officers cited their suspicion that § 87(2)(b) had a weapon as the reason why they suspected him of robbery.

When an officer has reasonable suspicion that an individual has committed, is committing, or is about to commit a crime, the officer may stop that individual. An officer is authorized to frisk an individual only if he suspects that the individual threatens physical injury to him by virtue of being armed. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1A-K). The observation of an individual adjusting an object on his person—even if said individual appears to make or avoid eye contact with police officers—lends itself to interpretation as innocuous behavior, and therefore constitutes neither reasonable suspicion that the individual is in the process of committing a crime, or armed. People v. Moore, 176 A.D.2d 297(2nd Dept.1991) (encl. 2A-B). An officer’s reference to his general training or experience as refining his ability to predict the presence of weapon is no substitute for describing the characteristics of a bulge prompting his suspicion of the presence of a weapon and consequently providing the articulable justification for his suspicion necessary for a frisk. People v. Cooper, 17 Misc. 3d 44 (App. Term, 1st Dept. 2007) (encl. 2C-F).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B and C** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date